

1 ENGROSSED SENATE
2 BILL NO. 1319

By: Frix of the Senate

3 and

4 Sneed of the House

5
6 [Corporation Commission - Revolving Fund -
7 expenditure - assistance - rules - codification -
8 emergency]
9

10 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

11 SECTION 1. NEW LAW A new section of law to be codified
12 in the Oklahoma Statutes as Section 180.14 of Title 17, unless there
13 is created a duplication in numbering, reads as follows:

14 A. The Corporation Commission shall establish a process to
15 alleviate new and ongoing serious environmental emergencies through
16 which a homeowner whose residence has become contaminated by a
17 substance within the Corporation Commission's jurisdiction,
18 including, but not limited to, brine or oil, may apply for
19 remediation assistance.

20 B. 1. To request the use of funds from the Remediation
21 Assistance Revolving Fund created in Section 2 of this act, the
22 homeowner shall file an application to be considered by the
23 Corporation Commission. The Corporation Commission may hear the
24 application with or without notice.

1 2. After considering the evidence presented, the Corporation
2 Commission shall rule on the application and determine the amount of
3 remediation assistance necessary to remediate and abate the
4 environmental emergency.

5 3. The amount of remediation assistance may include the cost to
6 stop the substance from continuing the contamination, the cost of
7 removing and cleaning up the substance, and the cost of purchasing
8 the residence and property at fair market value. The Remediation
9 Assistance Revolving Fund shall not be used to pay for any damages.

10 4. Prior to any expenditure from the Remediation Assistance
11 Revolving Fund, the Corporation Commission shall comply with the
12 requirements set forth in Section 85.41A of Title 74 of the Oklahoma
13 Statutes.

14 5. If the Corporation Commission determines that purchasing the
15 homeowner's property is the best course of action, title to the
16 property shall be acquired and held by the Commissioners of the Land
17 Office. The Commissioners of the Land Office shall determine the
18 fair market value of the property. If removal of the residence is
19 necessary, the Commissioners of the Land Office shall facilitate
20 removal of the residence. Once the residence is removed and the
21 presence of a well is confirmed, the Corporation Commission shall
22 remediate and abate the environmental emergency. After the property
23 is remediated, the Commissioners of the Land Office shall sell the
24

1 property and return all proceeds to the Remediation Assistance
2 Revolving Fund.

3 6. A homeowner's insurance claim shall not be required prior to
4 receiving remediation assistance provided pursuant to this
5 subsection. However, the homeowner shall in good faith pursue all
6 available homeowner's insurance claims and damage claims. All
7 proceeds received by the homeowner not related to damaged personal
8 property shall be reimbursed to the Remediation Assistance Revolving
9 Fund.

10 C. If, at any time, the environmental emergency is determined
11 by the Corporation Commission to not be within the Corporation
12 Commission's jurisdiction, or it is determined to be a naturally
13 occurring breakout, the matter shall be referred to the Department
14 of Environmental Quality and the Oklahoma Energy Resources Board to
15 remediate and abate the environmental emergency.

16 D. The Corporation Commission shall promulgate rules to
17 effectuate the provisions of this section.

18 SECTION 2. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 180.15 of Title 17, unless there
20 is created a duplication in numbering, reads as follows:

21 There is hereby created in the State Treasury a revolving fund
22 for the Corporation Commission to be designated the "Remediation
23 Assistance Revolving Fund". The fund shall be a continuing fund,
24 not subject to fiscal year limitations, and shall consist of all

1 monies received by the Corporation Commission from any public or
2 private donations, contributions, and gifts received for the benefit
3 of the fund and any amounts appropriated by the Legislature
4 designated for deposit in the fund. All monies accruing to the
5 credit of the fund are hereby appropriated and may be budgeted and
6 expended by the Corporation Commission for the purpose of providing
7 remediation assistance as provided for in Section 1 of this act.
8 Expenditures from the fund shall be made upon warrants issued by the
9 State Treasurer against claims filed as prescribed by law with the
10 Director of the Office of Management and Enterprise Services for
11 approval and payment.

12 SECTION 3. It being immediately necessary for the preservation
13 of the public peace, health or safety, an emergency is hereby
14 declared to exist, by reason whereof this act shall take effect and
15 be in full force from and after its passage and approval.

16
17
18
19
20
21
22
23
24

1 Passed the Senate the 25th day of March, 2026.

2
3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

7
8 _____
9 Presiding Officer of the House
10 of Representatives